

SENATE BILL No. 256

DIGEST OF INTRODUCED BILL

Citations Affected: IC 4-6-17.

Synopsis: Political activity of agents of hostile nations. Requires certain persons acting on behalf of a hostile foreign country to register with the attorney general.

Effective: July 1, 2026.

**Garten, Koch, Freeman, Busch,
Baldwin**

January 8, 2026, read first time and referred to Committee on Judiciary.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 256

A BILL FOR AN ACT to amend the Indiana Code concerning state offices and administration.

Be it enacted by the General Assembly of the State of Indiana:

- 1 SECTION 1. IC 4-6-17 IS ADDED TO THE INDIANA CODE AS
- 2 A **NEW** CHAPTER TO READ AS FOLLOWS [EFFECTIVE JULY
- 3 1, 2026]:
- 4 **Chapter 17. Hostile Foreign Agent Registration**
- 5 **Sec. 1. As used in this chapter, "agent" means an agent of a**
- 6 **hostile foreign principal.**
- 7 **Sec. 2. As used in this chapter, "agent of a hostile foreign**
- 8 **principal" means a person:**
- 9 **(1) who either:**
- 10 **(A) is an agent, representative, employee, or servant; or**
- 11 **(B) acts in any capacity at the order, request, or under the**
- 12 **direction or control;**
- 13 **of a hostile foreign principal;**
- 14 **(2) whose activities are directly or indirectly financed in whole**
- 15 **or in part by a hostile foreign principal; and**
- 16 **(3) who engages in political activity in Indiana.**
- 17 **Sec. 3. As used in this chapter, "foreign supported political**



organization" means a political party, or a domestic partnership, association, corporation, organization, or other combination of persons:

- (1) that has, within the previous five (5) calendar years, received money or anything of value from a hostile foreign principal or an agent; and
- (2) that engages in political activity.

Sec. 4. As used in this chapter, "hostile foreign country" means one (1) or more of the following:

- (1) The People's Republic of China.
- (2) The Russian Federation.
- (3) The People's Republic of North Korea.
- (4) The Islamic Republic of Iran.

Sec. 5. As used in this chapter, "hostile foreign principal" means one (1) or more of the following:

- (1) The government of a hostile foreign country, a political party of a hostile foreign country, or any member of a political party of a hostile foreign country.
- (2) A nonresident alien of a hostile foreign country.
- (3) A partnership, association, corporation, organization, or other combination of persons organized under the laws of, or having its principal place of business in, a hostile foreign country.
- (4) A partnership, association, corporation, organization, or other combination of persons that is at least twenty percent (20%) beneficially owned by a hostile foreign country, the government of a hostile foreign country, a nonresident alien of a hostile foreign country, or an entity organized under the laws of, or having its principal place of business in, a hostile foreign country.

Sec. 6. As used in this chapter, "political activity" means an activity that is performed with the intent to influence:

- (1) a state or local governmental entity, agency, or public official in Indiana; or
- (2) the general public in Indiana;

concerning the formulation, adoption, or modification of the laws or policies of Indiana, or the election or opposition to the election of a candidate for state or local office.

Sec. 7. (a) This section applies to an agent. Before acting as an agent, a person who acts as an agent shall file with the attorney general a true and complete registration statement in addition to supplements as required.



1 (b) The registration statement must include the following:

2 (1) The registrant's name.

3 (2) The registrant's principal business address, and all other
4 business addresses in the United States or elsewhere.

5 (3) The registrant's residential addresses, if any.

6 (4) If the registrant is an individual, the registrant's
7 nationality.

8 (5) If the registrant is a partnership, the names, residential
9 addresses, and nationalities of each partner and a true and
10 complete copy of the partnership's certificate of partnership.

11 (6) If the registrant is an association, corporation,
12 organization, or any other combination of individuals, the
13 following:

14 (A) The names, residential addresses, and nationalities of
15 each director and officer and each person performing the
16 functions of a director or officer.

17 (B) A true and complete copy of its charter, articles of
18 incorporation, association, constitution, bylaws, and
19 amendments to those documents.

20 (C) A copy of every other instrument or document and a
21 statement of the terms and conditions of every oral
22 agreement relating to its organization, powers, and
23 purposes.

24 (D) A statement of its ownership and control.

25 (7) A comprehensive statement of the nature of the
26 registrant's business.

27 (8) A complete list of the registrant's employees and a
28 statement of the nature of the work of each employee.

29 (9) The name and address of every hostile foreign principal
30 for whom the registrant is acting or has agreed to act.

31 (10) The character of the business or other activities of every
32 hostile foreign principal and, if a hostile foreign principal is
33 not a natural person, a statement of the ownership and
34 control of each hostile foreign principal.

35 (11) The extent, if any, to which each hostile foreign principal
36 is supervised, directed, owned, controlled, financed, or
37 subsidized, in whole or in part, by a government of a foreign
38 country or foreign political party, or by another agent or
39 hostile foreign principal.

40 (12) A comprehensive statement of the nature and method of
41 performance of each contract with a hostile foreign principal.

42 (13) A comprehensive statement of the existing and proposed



activities engaged in, or to be engaged in, by the registrant as an agent, including a detailed statement of any activity that is a political activity.

(14) The nature and amount of contributions, income, money, or things of value, if any, that the registrant has received within the preceding sixty (60) days from each hostile foreign principal, either as compensation or for disbursement or otherwise, and the form and time of each such payment and from whom received.

(15) A detailed statement of every activity that the registrant assumes, purports, or agrees to perform for the registrant or any other person other than a hostile foreign principal and that requires registration under this chapter, including a detailed statement of any activity that is a political activity.

(16) The name, business, and residence addresses, and if an individual, the nationality, of any person other than a hostile foreign principal for whom the registrant is acting or has agreed to act and the following:

(A) Information concerning the extent that the person is supervised, directed, owned, controlled, financed, or subsidized, in whole or in part, by any government of a foreign country or foreign political party or by any other foreign principal from a hostile foreign country.

(B) Information concerning the nature and amount of contributions, income, money, or thing of value, if any, that the registrant has received during the preceding sixty (60) days from each person in connection with any of the activities under subdivision (15), either as compensation or for disbursement or otherwise, and the form and time of each payment and from whom payment was received.

(17) A detailed statement of the money and other things of value spent or disposed of by the registrant during the preceding sixty (60) days in furtherance of or in connection with activities that require registration under this chapter.

(18) Notwithstanding any other laws, a detailed statement of any contributions of money or other things of value made by the registrant during the preceding sixty (60) days in connection with an election to any political office or in connection with any primary election, convention, or caucus held to select candidates for any political office.

(19) Other statements, information, or documents as required by the attorney general.



(20) Statements and copies of documents that are necessary to make the statements made in the registration statement and supplements not misleading.

(c) In addition to the information required in subsection (b), a registrant must also file copies of each written agreement and the terms and conditions of each oral agreement, including any modifications, or, where no contract exists, a full statement of all the circumstances, by reason of which the registrant is an agent.

(d) A registrant must update the information required under subsection (b) at least once every quarter.

Sec. 8. (a) Before December 31, 2026, a foreign supported political organization must file with the attorney general a true and complete registration statement in addition to supplements as required.

(b) The registration statement must include the following:

(1) The name of the foreign supported political organization, its business address, and the names, titles, and addresses of all officers and directors of the foreign supported political organization.

(2) If the foreign supported political organization is affiliated with or is a chapter of a national organization, the name of the national organization, its address, and the names and addresses of its officers and directors.

(3) A detailed statement of any expenditures of money or anything of value made by the organization within the prior calendar year for the purpose of political activity.

(4) A detailed statement of all money or anything of value received by the organization from a hostile foreign principal or an agent during the preceding calendar year.

(c) A registrant must update the information required under subsection (b) at least once every quarter.

Sec. 9. (a) If the attorney general, after a hearing conducted under IC 4-21.5-3, finds that:

(1) a registration statement required to be filed under this chapter was materially incorrect;

(2) the person filing the report was requested to file a corrected statement or report; and

(3) a corrected statement or report has not been filed;

the attorney general may invoke sanctions under subsection (b) or (c).

(b) The attorney general may assess a civil penalty of not more than five hundred dollars (\$500) for a violation of subsection (a).



- 1 **(c) The attorney general may:**
- 2 **(1) assess a civil penalty of not more than ten thousand dollars**
- 3 **(\$10,000); and**
- 4 **(2) suspend or permanently bar a person from acting as an**
- 5 **agent;**
- 6 **if the attorney general finds that the person violated subsection (a),**
- 7 **and that the violation was willful or that the person committed**
- 8 **repeated violations.**

